

SOLVED PRACTICE WORKBOOK

Constitutional Interpretation Doctrines - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Constitutional Interpretation Doctrines	
REFRESHED TEACHING NAVIGATION — BASIC/CORE FIRST	
01 WHY DOCTRINES MATTER Start an answer with the relevant text (for example Arts 13, 245-246)	02 INTERPRETIVE METHODS BEFORE APPLYING DOCTRINE Examiner opening: Constitutional interpretation moves from text to
03 FUNDAMENTAL-RIGHTS VALIDITY DOCTRINES □□ Rule: If the unconstitutional portion of a law can be separated	04 LEGISLATIVE-COMPETENCE DOCTRINES Technically, Legislative-competence doctrines is analysed by relating
05 MEANING AND RECONCILIATION DOCTRINES Sequence trap: Federal supremacy is a last-stage constitutional	06 TIME AND AUTHORITY DOCTRINES Technically, Time and authority doctrines is analysed by relating Time
07 READING DOWN, READING INTO AND JUDICIAL-LEGISLATION LIMITS □□ Reading into supplies an implication necessary to protect a	08 BASIC STRUCTURE AS AN INTERPRETIVE LIMIT ON AMENDMENT State of Kerala (1973) holds that Parliament's Art 368 power is wide
09 PRESUMPTION, ARBITRARINESS AND PROPORTIONALITY Manifest arbitrariness is a demanding invalidity standard for	10 CONSTITUTIONAL MORALITY AND TRANSFORMATIVE CONSTITUTIONALISM Transformative constitutionalism treats the Constitution as a lawful
11 ESSENTIAL RELIGIOUS PRACTICES AND CURRENT DOCTRINAL CAUTION The court distinguishes protected matters of religion from secular	12 CONSTITUTIONALLY RELEVANT NEIGHBOURING DOCTRINES They should not be substituted for the primary competence, rights or
13 CONSTITUTIONAL SILENCE, CONVENTIONS AND RESTRAINT Article 142 permits complete justice in the cause before the Supreme	14 DECISION TREES FOR COMPETENCE, RIGHTS AND REMEDIES Complex litigation should be solved in a fixed order establish
15 DOCTRINE-SELECTION MATRIX Technically, Doctrine-selection matrix is analysed by relating One	16 COMPREHENSIVE DOCTRINE ATLAS — COMPACT USE Technically, Comprehensive doctrine atlas — compact use is analysed
17 MUST-KNOW FACTS □ Art 13 anchors invalid law doctrine; Arts 245-246 and 254 anchor	

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Constitutional Interpretation Doctrines - Solved Practice Workbook

BASIC MCQS / REMEDIATION

MCQ 1. What is the correct first step before invoking a constitutional doctrine?

- A. Identify the governing Article, legal trigger, competent institution and requested legal effect.
- B. Begin with the desired policy result.
- C. Choose the most famous case regardless of the issue.
- D. Treat every doctrine as an independent constitutional provision.

Answer: A

Explanation: Doctrine follows text, trigger and remedy; it does not replace them. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 2. When may a court sever an unconstitutional part?

- A. Even when the remainder becomes a new scheme.
- B. When the valid remainder is textually separable, workable and consistent with legislative intent.
- C. Whenever deletion produces a preferred policy.
- D. Only for pre-Constitution laws.

Answer: B

Explanation: R.M.D. Chamarbaugwala v. Union of India (1957) requires separability and viability. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 3. Which statement correctly distinguishes eclipse and waiver?

- A. Eclipse automatically validates every post-Constitution void law.
- B. Both doctrines repeal the law.
- C. Eclipse classically suspends inconsistent pre-Constitution law to the extent of conflict; non-waiver prevents consent from validating unconstitutional State action.
- D. Waiver applies identically to every private procedural right.

Answer: C

Explanation: Bhikaji Narain Dhakras (1955) and Basheshar Nath (1958) address different objects and effects. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 4. What does pith and substance test?

- A. The political motive of individual legislators.
- B. Repugnancy in every Union-State overlap.
- C. Only literal wording of the title.
- D. The law's true nature and character, allowing genuine incidental overlap when the dominant field is competent.

Answer: D

Explanation: Purpose, scope and effects locate the dominant legislative field. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 5. Which statement on colourable legislation is correct?

- A. It exposes a disguised lack of legislative competence; bad motive alone is insufficient.
- B. It applies only after Presidential assent under Article 254(2).
- C. It is identical to manifest arbitrariness.
- D. It invalidates any unpopular law.

Answer: A

Explanation: K.C. Gajapati Narayan Deo (1953) is a competence doctrine, not a motive inquiry. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 6. When can a State law have effects beyond the State?

- A. Whenever the State declares a national interest.
- B. When a real and sufficient territorial connection links the State, subject and imposed liability or operation.
- C. Only after Parliament delegates Article 245(2).
- D. A remote or illusory connection is enough.

Answer: B

Explanation: State of Bombay v. R.M.D. Chamarbaugwala (1957) requires a relevant nexus. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 7. Which sequence correctly applies Article 254?

- A. Treat any Union law as automatically occupying every related field.
- B. Apply Article 254 to every List I-List II overlap.
- C. Find the same Concurrent field, compare schemes and actual conflict, then apply Union priority subject to the Article 254(2) assent route and later parliamentary override.
- D. Use Presidential assent to cure lack of State competence.

Answer: C

Explanation: Deep Chand v. State of Uttar Pradesh (1959) and M. Karunanidhi v. Union of India (1979) demand field and conflict analysis. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 8. What is the operative aim of harmonious construction?

- A. Erase the less preferred provision.
- B. Automatically make Union law supreme.
- C. Override clear text with abstract purpose.
- D. Give meaningful operation to apparently conflicting provisions before invoking an express constitutional priority.

Answer: D

Explanation: In re Kerala Education Bill (1958) illustrates reconciliation within constitutional structure. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 9. Which proposition on prospective overruling is correct?

- A. A court must expressly shape the temporal effect of a new rule to preserve identified past transactions or effects.
- B. Every overruled case automatically survives prospectively.
- C. It applies only to legislation and never precedent.
- D. It changes constitutional text.

Answer: A

Explanation: I.C. Golaknath (1967) introduced the technique in Indian constitutional adjudication. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 10. What does the basic-structure doctrine review?

- A. Whether every ordinary statute is desirable.
- B. Whether an Article 368 amendment damages constitutional identity or an essential feature, despite formal procedural validity.
- C. A closed textual list printed in the Constitution.
- D. Whether courts may amend the Constitution by judgment.

Answer: B

Explanation: Kesavananda Bharati (1973) and Minerva Mills (1980) limit the amending power. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 11. Which use of constitutional morality is legitimate?

- A. Social popularity without constitutional source.
- B. A judge's personal morality as a free-standing veto.
- C. Reasoning anchored in constitutional text, procedures, equal citizenship and institutional role morality.
- D. Automatic displacement of legislative competence.

Answer: C

Explanation: Navtej Singh Johar v. Union of India (2018) links transformative reasoning to rights and structure. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 12. Which proposition correctly connects Articles 141 and 142?

- A. A smaller bench may silently overrule a larger bench.
- B. Every judicial sentence is binding ratio.
- C. Article 142 is an unlimited source of legislative power.
- D. Binding ratio and bench strength control precedent; Article 142 supplies case-bound complete justice but cannot disregard substantive law.

Answer: D

Explanation: Supreme Court Bar Association (1998) marks the substantive-law limit. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 13. Which close-option distinction is constitutionally accurate concerning doctrine selection?

- A. Identify the governing Article, legal trigger, competent institution and requested legal effect.
- B. Begin with the desired policy result.
- C. Treat every doctrine as an independent constitutional provision.
- D. Choose the most famous case regardless of the issue.

Answer: A

Explanation: Doctrine follows text, trigger and remedy; it does not replace them. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 14. Which close-option distinction is constitutionally accurate concerning severability?

- A. Only for pre-Constitution laws.
- B. When the valid remainder is textually separable, workable and consistent with legislative intent.
- C. Whenever deletion produces a preferred policy.
- D. Even when the remainder becomes a new scheme.

Answer: B

Explanation: R.M.D. Chamarbaugwala v. Union of India (1957) requires separability and viability. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 15. Which close-option distinction is constitutionally accurate concerning eclipse and waiver?

- A. Eclipse automatically validates every post-Constitution void law.
- B. Waiver applies identically to every private procedural right.
- C. Eclipse classically suspends inconsistent pre-Constitution law to the extent of conflict; non-waiver prevents consent from validating unconstitutional State action.
- D. Both doctrines repeal the law.

Answer: C

Explanation: Bhikaji Narain Dhakras (1955) and Bashesar Nath (1958) address different objects and effects. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 16. Which close-option distinction is constitutionally accurate concerning pith and substance?

- A. The political motive of individual legislators.
- B. Repugnancy in every Union-State overlap.
- C. Only literal wording of the title.
- D. The law's true nature and character, allowing genuine incidental overlap when the dominant field is competent.

Answer: D

Explanation: Purpose, scope and effects locate the dominant legislative field. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 17. Which close-option distinction is constitutionally accurate concerning colourable legislation?

- A. It exposes a disguised lack of legislative competence; bad motive alone is insufficient.
- B. It invalidates any unpopular law.
- C. It applies only after Presidential assent under Article 254(2).
- D. It is identical to manifest arbitrariness.

Answer: A

Explanation: K.C. Gajapati Narayan Deo (1953) is a competence doctrine, not a motive inquiry. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 18. Which close-option distinction is constitutionally accurate concerning territorial nexus?

- A. Whenever the State declares a national interest.
- B. When a real and sufficient territorial connection links the State, subject and imposed liability or operation.
- C. Only after Parliament delegates Article 245(2).
- D. A remote or illusory connection is enough.

Answer: B

Explanation: State of Bombay v. R.M.D. Chamarbaugwala (1957) requires a relevant nexus. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 19. Which close-option distinction is constitutionally accurate concerning repugnancy and occupied field?

- A. Treat any Union law as automatically occupying every related field.
- B. Use Presidential assent to cure lack of State competence.
- C. Find the same Concurrent field, compare schemes and actual conflict, then apply Union priority subject to the Article 254(2) assent route and later parliamentary override.
- D. Apply Article 254 to every List I-List II overlap.

Answer: C

Explanation: Deep Chand v. State of Uttar Pradesh (1959) and M. Karunanidhi v. Union of India (1979) demand field and conflict analysis. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 20. Which close-option distinction is constitutionally accurate concerning harmonious construction?

- A. Override clear text with abstract purpose.
- B. Automatically make Union law supreme.
- C. Erase the less preferred provision.
- D. Give meaningful operation to apparently conflicting provisions before invoking an express constitutional priority.

Answer: D

Explanation: In re Kerala Education Bill (1958) illustrates reconciliation within constitutional structure. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 21. Which close-option distinction is constitutionally accurate concerning prospective overruling?

- A. A court must expressly shape the temporal effect of a new rule to preserve identified past transactions or effects.
- B. Every overruled case automatically survives prospectively.
- C. It changes constitutional text.
- D. It applies only to legislation and never precedent.

Answer: A

Explanation: I.C. Golaknath (1967) introduced the technique in Indian constitutional adjudication. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 22. Which close-option distinction is constitutionally accurate concerning basic structure?

- A. Whether every ordinary statute is desirable.
- B. Whether an Article 368 amendment damages constitutional identity or an essential feature, despite formal procedural validity.
- C. A closed textual list printed in the Constitution.
- D. Whether courts may amend the Constitution by judgment.

Answer: B

Explanation: Kesavananda Bharati (1973) and Minerva Mills (1980) limit the amending power. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 23. Which close-option distinction is constitutionally accurate concerning constitutional morality and transformation?

- A. A judge's personal morality as a free-standing veto.
- B. Automatic displacement of legislative competence.
- C. Reasoning anchored in constitutional text, procedures, equal citizenship and institutional role morality.
- D. Social popularity without constitutional source.

Answer: C

Explanation: Navtej Singh Johar v. Union of India (2018) links transformative reasoning to rights and structure. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 24. Which close-option distinction is constitutionally accurate concerning precedent and remedy?

- A. Every judicial sentence is binding ratio.
- B. A smaller bench may silently overrule a larger bench.
- C. Article 142 is an unlimited source of legislative power.
- D. Binding ratio and bench strength control precedent; Article 142 supplies case-bound complete justice but cannot disregard substantive law.

Answer: D

Explanation: Supreme Court Bar Association (1998) marks the substantive-law limit. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 25. A State authority adopts the following proposition. Which correction is legally safest?

- A. Identify the governing Article, legal trigger, competent institution and requested legal effect.
- B. Treat every doctrine as an independent constitutional provision.
- C. Begin with the desired policy result.
- D. The proposition is valid because all affirmative-action powers are interchangeable.

Answer: A

Explanation: Doctrine follows text, trigger and remedy; it does not replace them. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 26. A State authority adopts the following proposition. Which correction is legally safest?

- A. Only for pre-Constitution laws.
- B. When the valid remainder is textually separable, workable and consistent with legislative intent.
- C. Even when the remainder becomes a new scheme.
- D. The proposition is valid because all affirmative-action powers are interchangeable.

Answer: B

Explanation: R.M.D. Chamarbaugwala v. Union of India (1957) requires separability and viability. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 27. A State authority adopts the following proposition. Which correction is legally safest?

- A. The proposition is valid because all affirmative-action powers are interchangeable.
- B. Waiver applies identically to every private procedural right.
- C. Eclipse classically suspends inconsistent pre-Constitution law to the extent of conflict; non-waiver prevents consent from validating unconstitutional State action.
- D. Eclipse automatically validates every post-Constitution void law.

Answer: C

Explanation: Bhikaji Narain Dhakras (1955) and Bashesar Nath (1958) address different objects and effects. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 28. A State authority adopts the following proposition. Which correction is legally safest?

- A. Only literal wording of the title.
- B. The proposition is valid because all affirmative-action powers are interchangeable.
- C. Repugnancy in every Union-State overlap.
- D. The law's true nature and character, allowing genuine incidental overlap when the dominant field is competent.

Answer: D

Explanation: Purpose, scope and effects locate the dominant legislative field. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 29. A State authority adopts the following proposition. Which correction is legally safest?

- A. It exposes a disguised lack of legislative competence; bad motive alone is insufficient.
- B. It applies only after Presidential assent under Article 254(2).
- C. It is identical to manifest arbitrariness.
- D. The proposition is valid because all affirmative-action powers are interchangeable.

Answer: A

Explanation: K.C. Gajapati Narayan Deo (1953) is a competence doctrine, not a motive inquiry. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 30. A State authority adopts the following proposition. Which correction is legally safest?

- A. The proposition is valid because all affirmative-action powers are interchangeable.
- B. When a real and sufficient territorial connection links the State, subject and imposed liability or operation.
- C. Only after Parliament delegates Article 245(2).
- D. A remote or illusory connection is enough.

Answer: B

Explanation: State of Bombay v. R.M.D. Chamarbaugwala (1957) requires a relevant nexus. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 31. A State authority adopts the following proposition. Which correction is legally safest?

- A. Use Presidential assent to cure lack of State competence.
- B. Treat any Union law as automatically occupying every related field.
- C. Find the same Concurrent field, compare schemes and actual conflict, then apply Union priority subject to the Article 254(2) assent route and later parliamentary override.
- D. The proposition is valid because all affirmative-action powers are interchangeable.

Answer: C

Explanation: Deep Chand v. State of Uttar Pradesh (1959) and M. Karunanidhi v. Union of India (1979) demand field and conflict analysis. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 32. A State authority adopts the following proposition. Which correction is legally safest?

- A. Automatically make Union law supreme.
- B. The proposition is valid because all affirmative-action powers are interchangeable.
- C. Override clear text with abstract purpose.
- D. Give meaningful operation to apparently conflicting provisions before invoking an express constitutional priority.

Answer: D

Explanation: In re Kerala Education Bill (1958) illustrates reconciliation within constitutional structure. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 33. A State authority adopts the following proposition. Which correction is legally safest?

- A. A court must expressly shape the temporal effect of a new rule to preserve identified past transactions or effects.
- B. It applies only to legislation and never precedent.
- C. The proposition is valid because all affirmative-action powers are interchangeable.
- D. It changes constitutional text.

Answer: A

Explanation: I.C. Golaknath (1967) introduced the technique in Indian constitutional adjudication. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 34. A State authority adopts the following proposition. Which correction is legally safest?

- A. The proposition is valid because all affirmative-action powers are interchangeable.
- B. Whether an Article 368 amendment damages constitutional identity or an essential feature, despite formal procedural validity.
- C. Whether courts may amend the Constitution by judgment.
- D. A closed textual list printed in the Constitution.

Answer: B

Explanation: Kesavananda Bharati (1973) and Minerva Mills (1980) limit the amending power. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 35. A State authority adopts the following proposition. Which correction is legally safest?

- A. The proposition is valid because all affirmative-action powers are interchangeable.
- B. Automatic displacement of legislative competence.
- C. Reasoning anchored in constitutional text, procedures, equal citizenship and institutional role morality.
- D. Social popularity without constitutional source.

Answer: C

Explanation: Navtej Singh Johar v. Union of India (2018) links transformative reasoning to rights and structure. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 36. A State authority adopts the following proposition. Which correction is legally safest?

- A. Article 142 is an unlimited source of legislative power.
- B. A smaller bench may silently overrule a larger bench.
- C. The proposition is valid because all affirmative-action powers are interchangeable.
- D. Binding ratio and bench strength control precedent; Article 142 supplies case-bound complete justice but cannot disregard substantive law.

Answer: D

Explanation: Supreme Court Bar Association (1998) marks the substantive-law limit. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 37. For a UPSC answer on doctrine selection, which proposition should anchor the analysis?

- A. Identify the governing Article, legal trigger, competent institution and requested legal effect.
- B. Begin with the desired policy result.
- C. The issue is controlled only by executive policy and not constitutional text.
- D. Choose the most famous case regardless of the issue.

Answer: A

Explanation: Doctrine follows text, trigger and remedy; it does not replace them. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 38. For a UPSC answer on severability, which proposition should anchor the analysis?

- A. The issue is controlled only by executive policy and not constitutional text.
- B. When the valid remainder is textually separable, workable and consistent with legislative intent.
- C. Whenever deletion produces a preferred policy.
- D. Even when the remainder becomes a new scheme.

Answer: B

Explanation: R.M.D. Chamarbaugwala v. Union of India (1957) requires separability and viability. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 39. For a UPSC answer on eclipse and waiver, which proposition should anchor the analysis?

- A. Both doctrines repeal the law.
- B. The issue is controlled only by executive policy and not constitutional text.
- C. Eclipse classically suspends inconsistent pre-Constitution law to the extent of conflict; non-waiver prevents consent from validating unconstitutional State action.
- D. Eclipse automatically validates every post-Constitution void law.

Answer: C

Explanation: Bhikaji Narain Dhakras (1955) and Bhasheshwar Nath (1958) address different objects and effects. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 40. For a UPSC answer on pith and substance, which proposition should anchor the analysis?

- A. The political motive of individual legislators.
- B. Repugnancy in every Union-State overlap.
- C. The issue is controlled only by executive policy and not constitutional text.
- D. The law's true nature and character, allowing genuine incidental overlap when the dominant field is competent.

Answer: D

Explanation: Purpose, scope and effects locate the dominant legislative field. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 41. For a UPSC answer on colourable legislation, which proposition should anchor the analysis?

- A. It exposes a disguised lack of legislative competence; bad motive alone is insufficient.
- B. The issue is controlled only by executive policy and not constitutional text.
- C. It applies only after Presidential assent under Article 254(2).
- D. It invalidates any unpopular law.

Answer: A

Explanation: K.C. Gajapati Narayan Deo (1953) is a competence doctrine, not a motive inquiry. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 42. For a UPSC answer on territorial nexus, which proposition should anchor the analysis?

- A. The issue is controlled only by executive policy and not constitutional text.
- B. When a real and sufficient territorial connection links the State, subject and imposed liability or operation.
- C. A remote or illusory connection is enough.
- D. Whenever the State declares a national interest.

Answer: B

Explanation: State of Bombay v. R.M.D. Chamarbaugwala (1957) requires a relevant nexus. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 43. For a UPSC answer on repugnancy and occupied field, which proposition should anchor the analysis?

- A. Apply Article 254 to every List I-List II overlap.
- B. Use Presidential assent to cure lack of State competence.
- C. Find the same Concurrent field, compare schemes and actual conflict, then apply Union priority subject to the Article 254(2) assent route and later parliamentary override.
- D. The issue is controlled only by executive policy and not constitutional text.

Answer: C

Explanation: Deep Chand v. State of Uttar Pradesh (1959) and M. Karunanidhi v. Union of India (1979) demand field and conflict analysis. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 44. For a UPSC answer on harmonious construction, which proposition should anchor the analysis?

- A. Automatically make Union law supreme.
- B. Erase the less preferred provision.
- C. The issue is controlled only by executive policy and not constitutional text.
- D. Give meaningful operation to apparently conflicting provisions before invoking an express constitutional priority.

Answer: D

Explanation: In re Kerala Education Bill (1958) illustrates reconciliation within constitutional structure. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 45. For a UPSC answer on prospective overruling, which proposition should anchor the analysis?

- A. A court must expressly shape the temporal effect of a new rule to preserve identified past transactions or effects.
- B. It applies only to legislation and never precedent.
- C. Every overruled case automatically survives prospectively.
- D. The issue is controlled only by executive policy and not constitutional text.

Answer: A

Explanation: I.C. Golaknath (1967) introduced the technique in Indian constitutional adjudication. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 46. For a UPSC answer on basic structure, which proposition should anchor the analysis?

- A. Whether every ordinary statute is desirable.
- B. Whether an Article 368 amendment damages constitutional identity or an essential feature, despite formal procedural validity.
- C. Whether courts may amend the Constitution by judgment.
- D. The issue is controlled only by executive policy and not constitutional text.

Answer: B

Explanation: Kesavananda Bharati (1973) and Minerva Mills (1980) limit the amending power. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 47. For a UPSC answer on constitutional morality and transformation, which proposition should anchor the analysis?

- A. A judge's personal morality as a free-standing veto.
- B. Automatic displacement of legislative competence.
- C. Reasoning anchored in constitutional text, procedures, equal citizenship and institutional role morality.
- D. The issue is controlled only by executive policy and not constitutional text.

Answer: C

Explanation: Navtej Singh Johar v. Union of India (2018) links transformative reasoning to rights and structure. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 48. For a UPSC answer on precedent and remedy, which proposition should anchor the analysis?

- A. Every judicial sentence is binding ratio.
- B. Article 142 is an unlimited source of legislative power.
- C. The issue is controlled only by executive policy and not constitutional text.
- D. Binding ratio and bench strength control precedent; Article 142 supplies case-bound complete justice but cannot disregard substantive law.

Answer: D

Explanation: Supreme Court Bar Association (1998) marks the substantive-law limit. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

PYQS AND ANSWER PRACTICE

Verified direct PYQ 1 - UPSC Mains 2019, GS Paper II, Question 4

Exact question: "From the resolution of contentious issues regarding distribution of legislative powers by the courts, 'Principle of Federal Supremacy' and 'Harmonious Construction' have emerged. Explain." **10 marks, 150 words.**

Model answer: Courts first identify the true field through pith and substance and interpret entries broadly so incidental overlap does not disable government. Harmonious construction then assigns meaningful operation to both fields or provisions. Only an irreconcilable conflict triggers the Constitution's priority rules: Article 246 gives Union-list priority, while Article 254 governs repugnancy in the same Concurrent field. *M. Karunanidhi v. Union of India* (1979) requires actual inconsistency; mere overlap is insufficient. Federal supremacy is therefore a final constitutional rule, not a shortcut that erases State competence.

Verified direct PYQ 2 - UPSC Mains 2021, GS Paper II, Question 1

Exact question: "'Constitutional Morality' is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of 'Constitutional Morality' with the help of relevant judicial decisions." **10 marks, 150 words.**

Model answer: Constitutional morality means fidelity to constitutional text, procedure, equal citizenship and the role morality of institutions rather than social or personal morality. *Kesavananda Bharati* (1973) protects structural limits; *Government of NCT of Delhi and Navtej Singh Johar v. Union of India* (2018) connect constitutional conduct with accountable government, dignity and equality. The doctrine can test exclusion and abuse of office, but must identify the governing Article, precedent and remedy. It is thus disciplined constitutional reasoning, not a free-standing judicial power to impose moral preference.

Supporting PYQ 3 - UPSC Mains 2019, GS Paper II, Question 12

Exact question: "'Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power.' In the light of this statement, explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power." **15 marks, 250 words.**

Solution spine: Article 368 power and procedure -> *Kesavananda Bharati* (1973) -> limited amending power -> *Minerva Mills* (1980) -> judicial review/basic features -> no self-enlargement into unlimited constituent power -> qualified conclusion distinguishing amendment from interpretation.

Supporting PYQ 4 - UPSC Prelims 2020, GS Paper I, Question 13

Exact question: Consider the following statements:

1. The Constitution of India defines its 'basic structure' in terms of federalism, secularism, fundamental rights and democracy.
 2. The Constitution of India provides for 'judicial review' to safeguard the citizens' liberties and to preserve the ideals on which the Constitution is based.
- A. 1 only
 - B. 2 only

- C. Both 1 and 2
- D. Neither 1 nor 2

Official-key answer: D. Statement 1 falsely attributes a judicially evolved, non-exhaustive doctrine to an express constitutional definition. The official key also rejects Statement 2's specific attribution; the Constitution creates judicial-review powers through provisions such as Articles 13, 32 and 226, while the quoted purpose is doctrinal description rather than enacted text.

Supporting PYQ 5 - UPSC Prelims 2023, GS Paper I, Question 34

Exact question: In India, which one of the following Constitutional Amendments was widely believed to be enacted to overcome the judicial interpretations of the Fundamental Rights?

- A. 1st Amendment
- B. 42nd Amendment
- C. 44th Amendment
- D. 86th Amendment

Official status: The question was dropped. No scored official answer is attributed. The First Amendment is the historical route commonly discussed, but a dropped question must remain labelled as such.

Supporting PYQ 6 - UPSC Mains 2025, GS Paper II, Question 11

Exact question: "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike...." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India." **15 marks, 250 words.**

Solution spine: Define text/role morality -> independence as structural guarantee -> reasons, recusal, ethics, open justice and review as accountability -> no political control over decisions and no personal immunity -> institutional balance and public confidence.

Why these answers earn marks: Each begins with the controlling text, states the operative test, uses a leading case and specifies legal effect and limitation. **How to improve:** Never cite a doctrine as a slogan; apply its elements to the facts and distinguish holding, obiter and pending questions.

Original solved Mains practice

M1. Compare severability, eclipse and prospective overruling as techniques that moderate invalidity.

Directive: Compare | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Severability concerns parts of a law: under Article 13 the court removes only the unconstitutional portion when the remainder is separable, workable and intended, as in *R.M.D. Chamarbaugwala v. Union of India* (1957). Eclipse concerns enforceability: *Bhikaji Narain Dhakras* (1955) classically treats inconsistent pre-Constitution law as dormant to the extent of conflict, capable of revival if the impediment disappears. Prospective overruling concerns time: *I.C. Golaknath* (1967) allows a new judicial rule to operate prospectively while preserving specified past effects. None is automatic. Severability cannot rewrite a scheme, eclipse is not repeal, and prospective effect must be expressly reasoned. Together they protect constitutional supremacy while avoiding unnecessarily destructive remedies.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M2. Analyse pith and substance, ancillary power and colourable legislation as a competence sequence.

Directive: Analyse | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: The court first asks the true nature and character of the law-its purpose, scope and effects. If its dominant field lies within competence, pith and substance tolerates incidental overlap. Ancillary power then supports provisions reasonably necessary to make the granted entry effective. Colourable legislation supplies the negative check: K.C. Gajapati Narayan Deo (1953) prevents form from disguising a law whose substance lies outside power, though bad motive alone is insufficient. The sequence preserves workable federal regulation without permitting indirect usurpation. A strong answer therefore moves from dominant field, to genuine auxiliary measure, to disguised incompetence.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M3. Explain the complete Article 254 repugnancy test and the limits of Presidential assent.

Directive: Explain | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Repugnancy begins only when Parliamentary and State laws occupy the same Concurrent field. The court compares their commands and schemes: can both be obeyed, did Parliament intend exhaustive coverage, or does one law frustrate the other? Deep Chand v. State of Uttar Pradesh (1959) and M. Karunanidhi v. Union of India (1979) require actual inconsistency; mere existence of a Union law is not enough. Under Article 254(1), Union law prevails and State law is void only to the extent of repugnancy. A State law reserved for and assented to by the President may prevail in that State under Article 254(2), but assent cannot cure lack of State competence and Parliament may later override it.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M4. Critically evaluate harmonious construction as a doctrine of constitutional restraint.

Directive: Critically evaluate | **Marks:** 10 | **Answer in:** 150 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Harmonious construction seeks a reading that gives meaningful operation to apparently conflicting provisions, entries or values. In re Kerala Education Bill (1958) illustrates reconciliation rather than mechanical destruction of one norm. The doctrine supports federal balance and Part III-Part IV coherence by requiring courts to test text, context and structural purpose before invoking supremacy. Its restraint lies in preserving enacted choices. Its limit is equally important: harmony cannot contradict express words, erase a proviso or neutralise a constitutionally declared priority. It is therefore a disciplined first response to apparent conflict, not a device for rewriting the Constitution.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 85 words of organised analysis and 25-35 words of qualified conclusion.

M5. Assess the legitimacy and limits of prospective overruling in constitutional adjudication.

Directive: Assess | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Prospective overruling separates the declaration of a new legal rule from its temporal consequences. Introduced in I.C. Golaknath (1967), it can protect settled transactions, administrative reliance and legal certainty when immediate retrospectivity would cause disruptive injustice. Yet it creates unequal temporal treatment and may resemble judicial legislation if used without clear reasons. The court should identify the old rule, new rule, protected class of past effects and constitutional justification for the cut-off. It is not automatic whenever precedent changes. Properly reasoned, the doctrine balances constitutional correction with rule-of-law stability; casually invoked, it weakens equality and predictability.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M6. Distinguish constitutional morality from transformative constitutionalism and personal morality.

Directive: Distinguish | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Constitutional morality concerns fidelity to constitutional text, procedures, equal citizenship and institutional roles. Transformative constitutionalism describes the Constitution's lawful project of dismantling status hierarchy and realising liberty, equality, dignity and fraternity. Navtej Singh Johar v. Union of India (2018) illustrates their interaction in rights adjudication. Personal or social morality, by contrast, has no independent power to override constitutional guarantees. Both constitutional concepts must identify an Article, structure, precedent and remedy; neither authorises judges to ignore competence or invent a complete policy code. Constitutional morality disciplines institutions, while transformation supplies direction within those disciplines.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M7. Construct a doctrine-selection method for a complex constitutional challenge.

Directive: Construct | **Marks:** 20 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Begin with jurisdiction and text. Identify the enacting institution, Article and legislative entry. For field overlap, apply pith and substance, ancillary power, colourability and territorial nexus; use Article 254 only for the same Concurrent field and actual conflict. Next identify the affected right and apply classification, arbitrariness or proportionality as appropriate. Then choose the invalidity tool: read down if text bears a valid meaning, sever if the remainder is workable, otherwise strike down. Decide temporal effect through reasoned prospective overruling. Finally

apply Article 141 bench hierarchy and choose a remedy no broader than necessary, remembering Article 142 cannot disregard substantive law. This sequence converts slogans into a reviewable legal method.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M8. Examine how precedent and bench strength constrain constitutional creativity.

Directive: Examine | **Marks:** 10 | **Answer in:** 150 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Article 141 binds courts to the law declared by the Supreme Court, principally the ratio necessary to the decision. Obiter may persuade but does not carry the same force. A smaller bench cannot overrule a larger one; a coordinate bench should distinguish on material grounds or refer the conflict. This hierarchy promotes equal treatment and legal certainty while allowing principled change through a proper larger bench. Article 142 permits complete justice in the cause before the Court, but Supreme Court Bar Association (1998) confirms that it cannot displace substantive law. Constitutional creativity is therefore legitimate when transparent about text, ratio, bench strength and remedy.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 85 words of organised analysis and 25-35 words of qualified conclusion.